

Record Retention and Destruction Policy

Effective January 1st, 2017

Partners of the Americas' document retention and destruction policy identifies the record retention responsibilities of staff, volunteers, board members, and outsiders for maintaining and documenting the storage and destruction of the organization's documents and records. Partners adopts the policy below to set guidelines and facilitate participation in the duty of care to establish transparency and ensure compliance.

Partners of the Americas takes seriously its obligations to preserve information relating to litigation, audits, and investigations. The information listed in the retention schedule below is intended as a guideline and may not contain all the records the Partners may be required to keep in the future. Questions regarding the retention of documents not listed in this chart should be directed to the F&A team. Any new awards and project startups and/or close out plans should explicitly plan for document retention. Please coordinate all new awards to ensure the proper documentation is kept on file.

SUMMARY OF BASIC DOCUMENT RETENTION REQUIREMENTS

Please note the charts below apply to both electronic and paper based records.

Programmatic Records:

All programmatic records will be held in compliance with 2 CFR 200.333 - Retention requirements for records. Financial records, supporting documents, statistical records, and all other non-Federal entity records pertinent to a Federal award must be retained for a period of three years from the date of submission of the final expenditure report or, for Federal awards that are renewed quarterly or annually, from the date of the submission of the quarterly or annual financial report, respectively, as reported to the Federal awarding agency or pass-through entity in the case of a subrecipient. Federal awarding agencies and pass-through entities must not impose any other record retention requirements upon non-Federal entities. The only exceptions are the following:

- 1) If any litigation, claim, or audit is started before the expiration of the 3-year period, the records must be retained until all litigation, claims, or audit findings involving the records have been resolved and final action taken.
- 2) When the non-Federal entity is notified in writing by the Federal awarding agency, cognizant agency for audit, oversight agency for audit, cognizant agency for indirect costs, or pass-through entity to extend the retention period.
- 3) Records for real property and equipment acquired with Federal funds must be retained for 3 years after final disposition.
- 4) When records are transferred to or maintained by the Federal awarding agency or pass-through entity, the 3-year retention requirement is not applicable to the non-Federal entity.
- 5) Records for program income transactions after the period of performance. In some cases recipients must report program income after the period of performance. Where there is such a requirement, the retention period for the records pertaining to the earning of the program income starts from the end of the non-Federal entity's fiscal year in which the program income is earned.
- 6) Indirect cost rate proposals and cost allocations plans. This paragraph applies to the

following types of documents and their supporting records: indirect cost rate computations or proposals, cost allocation plans, and any similar accounting computations of the rate at which a particular group of costs is chargeable (such as computer usage chargeback rates or composite fringe benefit rates).

- i) If submitted for negotiation. If the proposal, plan, or other computation is required to be submitted to the Federal Government (or to the pass-through entity) to form the basis for negotiation of the rate, then the 3-year retention period for its supporting records starts from the date of such submission.
- ii) If not submitted for negotiation. If the proposal, plan, or other computation is not required to be submitted to the Federal Government (or to the pass-through entity) for negotiation purposes, then the 3-year retention period for the proposal, plan, or computation and its supporting records starts from the end of the fiscal year (or other accounting period) covered by the proposal, plan, or other computation

Summary of the types of programmatic documents:

Types of Documents	Electronic/Paper	Responsible Dept.	To be recorded in HQ/Field	Retention Period
Prime Contract Related Documents	Both	Program Unit	HQ	USG 3 years Local Country TBD*
Field Operation Documents	Both	Program Unit	HQ and field	USG 3 years Local Country TBD*
Technical Deliverables Due to Client	Electronic or paper (as appropriate)	Program Unit	HQ	USG 3 years Local Country TBD*
Procurement Related Documents	Both	Program Unit	HQ and field (as needed)	USG 3 years Local Country TBD*
Financial Documents	Both	F&A and Program Unit	HQ (F&A) and field	USG 3 years* Local Country TBD
In Country Office Administration	Both	Program Unit	Field and HQ (selected documents only)	USG 3 years Local Country TBD*
Any Other Records as Required by Country or Client	Electronic or paper (as appropriate)	Program Unit	HQ and field	USG 3 years Local Country TBD*

*Some countries require the documents be retained in country for several years, even after the project or office is closed. Please reference the appropriate country's Field Office Supplemental Manual for any local requirements above the 3 years required under 2 CFR 200.

Administrative Records:

File Category	Types of Documents	Responsible Dept.	Retention Period
Corporate Records	Bylaws and Articles of Incorporation	F&A	Permanent
	Corporate resolutions	F&A	Permanent
	Board and committee meeting agendas and minutes	F&A & President's Office	Permanent
	Conflict-of-interest disclosure forms	F&A	4 years
	Strategic plan, including any special staffing, marketing, etc. plan	President's Office	7 years
	Annual plans and budgets	F&A	3 years
	Annual reports	President's Office	Permanent
	Material of historical value	All units and depts.	Permanent
	Certificates and/or licenses obtained	F&A	Permanent
Finance and Administration	Financial statements (audited)	F&A	7 year
	Audit Reports	F&A	Permanent
	Auditor management letters	F&A	7 years
	Year-end financial statements	F&A	Permanent
	Payroll records	F&A	7 years
	Check register and checks	F&A	Permanent
	Wire records and other disbursement payments	F&A	Permanent
	Credit card statements and receipts	F&A	7 years
	Petty Cash Records	F&A	7 years
	Accounts payable ledgers and schedules	F&A	7 years
	Expense analyses/expense distribution schedules	F&A	7 years
	Duplicate deposit slips and cash receipts	F&A	7 years
	Copies of invoices (to customers, from vendors etc.)	F&A	7 years
	Bank deposits, statements and reconciliations	F&A	7 years
	Chart of accounts	F&A	7 years
	General ledgers and journals	F&A	7 years
	Depreciation schedules	F&A	Permanently
	Investment performance reports	F&A	7 years
	Inventory records for materials, supplies, etc.	F&A	3 years
	Equipment files and maintenance records	F&A	7 years after disposition



	Policies and procedures	F&A	Permanent
	Contracts and agreements	F&A and Program Units	7 years minimum after all obligations end, some as indicated below are permanent.
	Correspondence — general	F&A and Program Units	3 years
	Correspondence — legal and important matters	F&A and Program Units	Permanent
	Copies of legal contracts or agreement	F&A	Permanent
	Copies of construction or maintenance contracts or agreements	F&A	Permanent
	Procurement documents	F&A	7 years
Insurance Records	Copies of all insurance contracts and policies	F&A	Permanent
	All insurance policies — occurrence type, policies, etc. (for active and expired)	F&A	Permanent
	All insurance policies — claims-made type (for active and expired)	F&A	Permanent
	Accident reports	F&A	7 years
	Safety (OSHA) reports	F&A	7 years
	Claims (after settlement)	F&A	7 years
	Group disability records	F&A	7 years after end of benefits
	Warranties	F&A	7 years
Real Estate	Deeds, mortgages, and bills of sale	F&A	Permanent
	Leases or subleases (expired)	F&A	Permanent
Tax	IRS exemption determination and related correspondence	F&A	Permanent
	IRS Form 990s	F&A	7 years
	Tax Returns and worksheets	F&A	Permanent
	Charitable Organizations Registration filed with local government. (DC Government)	F&A	7 years
Grant Funder Records	Grant disbursement contract or agreement and subsequent modifications	F&A	Permanent
	Grant applications and original proposal	F&A	7 years
	Grantee reports, both financial and narrative	Program Unit	7 years after completion of grant period
	All evidence of returned grant funds	F&A	7 years after



			completion of grant period
	All pertinent formal correspondence including opinion letters of counsel	F&A and Program Unit	7 years after completion of grant period
	Documentation relating to grantee evidence of invoices and matching or challenge grants that would support grantee compliance with the grant agreement	F&A	7 years after completion of grant period
	Pre-grant inquiry forms and other documentation for expenditure responsibility grants	F&A	7 years after completion of a grant period
	Grantee work product produced with the grant funds and/or report assessment forms	F&A	7 years after completion of a grant period
Donor and Sponsor Records*	Donor lists	F&A	7 years
	Donor acknowledgments and tax letters	F&A	7 years
	Donation records of endowment funds and of significant restricted funds	F&A and Communications Unit	Permanent
	Sponsorship records	F&A	Permanent
Human Resources	Employee personnel files, including offer letter, acceptance of offer, employee contacts, etc.	F&A	Permanent
	Retirement plan benefits (plan descriptions, plan documents)	F&A	Permanent
	Payroll registers	F&A	Permanent
	Payroll records and summaries including: payroll tax withholding, W-2 statements, earning records, payroll tax returns, unclaimed wages, etc.	F&A	7 years
	Employee handbooks	F&A	Permanent
	Workers comp claims (after settlement)	F&A	7 years
	Family Medical Leave records	F&A	3 years
	COBRA coverage related records	F&A	7 years
	Employee orientation and training materials	F&A	7 years after use ends
	Employment applications and hiring records	F&A	3 years

	IRS Form I-9 (store separate from personnel file)	F&A	3 years
	Withholding tax statements	F&A	7 years
	Timesheets	F&A	7 years
	Volunteer records and time donated	F&A and Membership Unit	3 years
Technology	Software licenses and support agreements	F&A and Program Units	7 years after all obligations end
	Trademark registrations and copyrights	F&A and Communication Unit	Permanent

*Donation records include a written agreement between the donor and Partners with regard to any contribution, an email communication or notes of or recordings of an oral discussion between Partners and the donor where the representative of Partners made representations to the donor with regard to the contribution on which the donor may have relied in making the gift.

Electronic Documents and Records

Electronic documents will be retained as if they were paper documents. Therefore, any electronic files that fall into one of the document types on the above schedule will be maintained for the appropriate amount of time. If a user has sufficient reason to keep an e-mail message, the message should be printed in hard copy and kept in the appropriate file or moved to an “archive” computer file folder. Backup and recovery methods will be tested on a regular basis.

Confidentiality of Records

Records containing confidential information, whether hardcopy or electronic, should be labeled and/or stored in a manner to limit access to those employees or other individuals with authorization to view such records. Hiring documents, including:

- I-9s
- W-4s
- Employee medical records, background check reports, and documents containing employee social security numbers will be segregated from personnel files
- All other files containing confidential information

Emergency Planning

Partners of the Americas’ records will be stored in a safe, secure, and accessible manner. Documents and financial files that are essential to keeping the organization operating in an emergency will be duplicated or backed up electronically (daily) and maintained at our off-site storage facility in Alexandria or at our onsite storage facility.

Document Destruction

Certain federal laws prohibit the destruction of certain documents. It is important for administrative and programmatic personnel to know the length of time records should be retained to be in compliance.

The Document Retention and Destruction Policy identifies the record retention responsibilities of staff, members of the board of directors, and others for maintaining and documenting the storage and destruction of the organization's documents and records. Partners of the Americas' staff, volunteers, members of the board of directors, committee members and outsiders (independent consultants, contractors via agreements with them) are required to honor the following rules:

- Paper or electronic documents indicated under the terms for retention in the following section will be transferred and maintained by the Finance & Administration Team (for administrative records) and Programmatic staff (for programmatic records).
- All other paper documents will be destroyed appropriate time period as indicated in the charts above.
- All other electronic documents will be deleted from all individual computers, data bases, networks, and back-up storage at the appropriate time period as indicated in the charts above.
- No paper or electronic documents will be destroyed or deleted if pertinent to any ongoing or anticipated government investigation or proceeding or private litigation (check with legal counsel or the human resources department for any current or foreseen litigation if employees have not been notified).
- No paper or electronic documents will be destroyed or deleted as required to comply with government auditing standards (Single Audit Act).

The Finance & Administration Team (for administrative records) and Programmatic staff (for programmatic records) are responsible for the ongoing process of identifying its records, which have met the required retention period, and overseeing their destruction. Destruction of financial and personnel-related documents will be accomplished by shredding. The F&A team is responsible for annual periodic review of the record retention and destruction policy.

Document destruction will be suspended immediately, upon any indication of an official investigation or when a lawsuit is filed or appears imminent. Destruction will be reinstated upon conclusion of the investigation.

Reporting Policy Violations

Partners of the Americas is committed to enforcing this Policy as it applies to all forms of records both hard and electronic copies. The effectiveness of Partners' efforts, however, depends largely on its employees. If an employee believes that the employee or someone else may have violated this policy, deliberately or accidentally, the employee should report the incident immediately to the Finance & Administration team. Partners prohibits any form of discipline, reprisal, intimidation or retaliation for reporting incidents of inappropriate conduct of any kind, pursuing any record destruction claim or cooperating in related investigations

Compliance

Failure on the part of employees to follow this policy can result in possible civil and criminal sanctions against the Partners of the Americas and its employees and possible disciplinary action against responsible individuals. The F&A team will periodically review these procedures with legal counsel or

Partners' certified public accountant to ensure that they are in compliance with new or revised regulations.

The F&A team is also authorized to: make modifications to the Record Retention and Destruction Policy from time to time to ensure that it is in compliance with local, state and federal laws and includes the appropriate document and record categories for Partners of the Americas. Partners will monitor local, state and federal laws affecting record retention; annually review the record retention and disposal program; and monitor compliance with this Policy.